

Claim form

Help with fees reference number

H W F – **A M W** – **O U B**



SEAL

Time Limit for filing a claim

A claim form must be filed promptly, and in any event **not later than 3 months** after the grounds to make the claim first arose: see CPR54.5(1).

Section 1 – Details of the claimant and defendant

1. Claimant name and address(es)

First name(s)

Nadia

Last name

Zahmoul

Address

Building and street

Withheld for safety reasons

Second line of address

Town or city

County (optional)

Postcode

--	--	--	--	--	--	--	--

Phone number

079 1332 8615

Email (if you have one)

Nadia@rosekross.com

Note: If there is more than one claimant, set out the details required by questions 1, 1.1 and 1.2 on a separate sheet, marking that sheet so that it is clear it relates to this part of the claim form.

1.1 Claimant or claimant's legal representative's address to which documents should be sent.

Name of claimant or claimant's legal representative's

Litigant in Person

Name of firm (if applicable)

Address for service

Building and street

Second line of address

Town or city

County (optional)

Postcode

Phone number

Email

Reference number (if applicable)

Note 1.1: CPR 6.23 requires each party to proceedings to provide an address for service which must be an address in the United Kingdom. Communication concerning the claim is sent to this address. If a solicitor or legal representative acts for you, give that address (if in the United Kingdom). If not, provide an address to which communication concerning this claim should be sent.

1.2 Claimant's Counsel's details

First name(s)

Litigant in Person

Last name

Address

Building and street

Second line of address

Town or city

County (optional)

Postcode

Phone number

Email

1.3 1st Defendant's name

Secretary of State for Justice and Permanent Secretary

1.4 Defendant or (where known) Defendant's legal representative's address to which documents should be sent.

Address

Building and street

Ministry of Justice

Second line of address

102 Petty France

Town or city

London

County (optional)

Postcode

S | W | 1 | H | 9 | A | J

Phone number

Email

Reference number (if known)

1.5 2nd Defendant's name

HM Courts & Tribunals Service (HMCTS)

1.6 Defendant's or (where known) Defendant's legal representative's address to which documents should be sent.

Address

Building and street

HM Courts & Tribunals Service (HMCTS)

Second line of address

102 Petty France

Town or city

London

County (optional)

Postcode

S | W | 1 | H | 9 | A | J

Phone number

Email

Reference number (if applicable)

Section 2 – Interested parties

2.1 Interested party

Name

None presently identified, though the Claimant reserves the right

~~Organisation (if applicable)~~

to add parties following the defendants' disclosure.

Address

Building and street

Second line of address

Town or city

County (optional)

Postcode

--	--	--	--	--	--	--	--

Phone number

Email

Reference number (if applicable)

Note 2: An Interested Party is someone other than a defendant who is directly affected by the claim.

Where the claim for judicial review relates to proceedings in a court or tribunal, any other parties to those proceedings must be named in the claim form as interested parties. Full details of interested parties must be included in the claim form. For example, if you were a defendant in a criminal case in the Magistrates or Crown Court and are making a claim for judicial review of a decision in that case, the prosecution must be named as an interested party. In a claim which does not relate to a decision of a court or tribunal, you should give details of any persons directly affected by the decision you wish to challenge.

If you consider there is more than one interested party, set out their details on a separate sheet, marking that sheet so that it is clear it relates to this part of the claim form.

Section 3 – Details of the decision to be judicially reviewed

Note 3.1: Use a separate sheet if you need more space for your answers, marking clearly which section the information refers to.

3.1 Give details of the decision you seek to have judicially reviewed.

The claim challenges a series of continuing administrative failures, not a single decision. These include:

1. HMCTS and MoJ’s failure to log, process, escalate, or transmit criminal evidence repeatedly submitted between April 2024 and May 2025, including three detailed Criminal Referrals and associated forensic material.
2. HMCTS and MoJ’s failure to safeguard and ensure independent forensic review of the Imerman devices (MacBook Pro and Ubuntu computer), despite repeated notifications that these devices contained source-level criminal evidence, resulting in loss of chain of custody and ongoing safeguarding risks.
3. HMCTS and MoJ’s failure to acknowledge, act upon, or preserve criminal material (continued on separate sheet)

3.2 Date of decision

Day	Month	Year

3.3 Name and address of the court, tribunal, person or body who made the decision to be reviewed.

Name

Continuing failures between April 2024 and May 2025 (ongoing administrative omissions)

Address

Building and street

Second line of address

Town or city

County (optional)

Postcode

Section 4 – Permission to proceed with a claim for judicial review

This section must be completed. You must answer all the questions and give further details where required.

4.1 I am seeking permission to proceed with my claim for Judicial Review.

Is this application being made under the terms of paragraph 17 Practice Direction 54A (Challenging removal)?

☐ Yes

☒ No

4.2 Does your claim, or any interlocutory application, for example for interim relief or expedition, need to be decided urgently – i.e. within 7 days?

☒ Yes. Complete form **N463** and file this with your application.

☐ No

4.3 Are you making any non-urgent interlocutory applications?

☐ Yes. Complete Section 9.

☒ No

4.4 Does any part of the claim allege a breach of Convention rights protected under the Human Rights Act?

☒ Yes. Identify the Convention rights you contend have been breached in the box below

See continuing sheet Section 4.4

☐ No

4.5 Have you complied with the pre-action protocol?

Note 4.5: See Practice Direction 54C.

☒ Yes

☐ No. Give reasons for non-compliance in the box below.

4.6 Have you filed this claim in the region with which the claim is most closely connected?

☒ Yes. Give any additional reasons for wanting it to be dealt with in this region in the box below

☐ No. Give reasons in the box below

4.7 Is the claimant in receipt of a Civil Legal Aid Certificate?

☐ Yes

☒ No

Section 5 – Statement of facts relied on

☐ set out below

☒ attached

See attached continuation sheet titled 'Section 5 – Statement of facts relied on'

Note 5: Set out the facts on which your claim is based: see Practice Direction 54A, paragraph 4.2. Use separate sheets if you need more space; mark the sheets so that it is clear they relate to this section of the claim form.

Section 6 – Detailed statement of grounds

6.1 The detailed statement of grounds are:

☐ set out below

☒ attached

Please see attached continuation sheet titled: Section 6 – Concise Statement of Grounds.”

Note 6: Set out each ground of challenge: see Practice Direction 54A at paragraph 4.2. Use separate sheets if you need more space; mark the sheets so that it is clear they relate to this section of the claim form.

Section 7 – Aarhus Convention claim

7.1 Is this claim an Aarhus Convention claim

☐ Yes. Give reasons why in the box below.

☒ No

7.2 Do you wish the court to vary or remove the limits on costs recoverable from a party?

☐ Yes. Give reasons why in the box below.

☒ No

Note 7: For the definition of an Aarhus claim, see CPR 45.41. The cost limit provisions are at CPR 45.43 – 44.

Section 8 – Details of remedy (including any interim remedy) being sought

Please see attached continuation sheet 8 titled: Section 8 – Details of remedy (including any interim remedy) being sought

Note 8: State precisely the terms of the order you ask the court to make. The available remedies are at CPR 54.2 – 3. The court may make any/all of the following orders:

- (a) a mandatory order;
- (b) a prohibiting order;
- (c) a quashing order; or
- (d) an injunction restraining a person from acting in any office in which he is not entitled to act.

A claim for damages may be included but only if you are seeking one of the orders set out above.

Section 9 – Other applications (non-urgent)

9.1 I wish to make the following applications for directions and/or interlocutory orders:

Note 9: If you wish to make any interlocutory application now, set out the application and the reasons and/or evidence relied on in support of it in this Section. Use separate sheets if you need more space; mark the sheets so that it is clear they relate to this section of the claim form.

If, after this claim form has been filed, you wish to make an interlocutory application, use form N244.

Section 10 – Supporting documents

The Claim Form must include or be accompanied by certain documents:
see Practice Direction 54A, paragraph 4.4(1) – (2).

Please complete the checklist below

- 10.1** ☒ Statement of Facts
- 10.2** ☒ Statement of Grounds
- 10.3** ☐ Any written evidence relied on in support of the claim.
- 10.4** ☐ Any written evidence in support of any other application contained in the claim form
- 10.5** ☒ If the claim seeks to have any order quashed, a copy of the order.
- 10.6** ☐ If the claim for judicial review is directed to a decision of a public authority, a copy of the decision challenged.
- 10.7** ☐ If the claim for judicial review is directed to the decision of a court or tribunal, an approved copy of the reasons for the decision.
- 10.8** ☐ Copies of any documents relied on.
- 10.9** ☐ A copy of any statutory material relevant to the claim.
- 10.10** ☐ A list of essential documents for advance reading by the court.
- 10.11** ☐ If paragraph 17 of Practice Direction 54A applies to the claim, copies of the documents specified at paragraph 17.2(1) (a) – (d).

If it has not been possible to file any of the above documents, state the reason why the document is not available.

Reasons why you have not supplied a document and date when you expect it to be available:-

10.12 ☐ If you contend the claim is an Aarhus Convention claim, the financial information required by CPR 45.42.

10.13 ☐ A copy of the legal aid or Civil Legal Aid certificate (if applicable)

Statement of truth

I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☒ **I believe** that the facts stated in this form are true.

☐ **The claimant** believes that the facts stated in this form are true. **I am authorised** by the claimant to sign this statement.

Signature

Nadia Zahmoul

- ☒ Claimant
☐ Litigation friend
☐ Claimant's legal representative (as defined by CPR 2.3(1))

Date

Day

28

Month

11

Year

2025

Full name

Nadia Zahmoul

If claimant's legal representative, state name and firm

If signing on behalf of firm or company give position or office held

The Court and venue

CPR part 54 – claims for Judicial Review are dealt with by the Administrative Court.

The general expectation is that proceedings will be administered and determined in the region with which the claim has closest connection; see Practice Direction 54C paragraph 2.5.

- Where the claim is proceeding in the Administrative Court in **London**, documents must be filed in the Administrative Court Office, Issues and Enquiries, Royal Courts of Justice, Strand, London, WC2A 2LL.
- Where the claim is proceeding in the Administrative Court in **Birmingham**, documents must be filed in the Administrative Court Office, Birmingham Civil Justice Centre, Priory Courts, 33 Bull Street, Birmingham B4 6DS.
- Where the claim is proceeding in the Administrative Court in **Wales**, documents must be filed in the Administrative Court Office, Cardiff Civil Justice Centre, 2 Park Street, Cardiff, CF10 1ET.
- Where the claim is proceeding in the Administrative Court in **Leeds**, documents must be filed in the Administrative Court Office, Leeds Combined Court Centre, 1 Oxford Row, Leeds, LS1 3BG.
- Where the claim is proceeding in the Administrative Court in **Manchester**, documents must be filed in the Administrative Court Office, Manchester Civil Justice Centre, 1 Bridge Street West, Manchester, M3 3FX.